

Form No: HCJD/C-121

ORDER SHEET

LAHORE HIGH COURT

MULTAN BENCH MULTAN

JUDICIAL DEPARTMENT

ICA No.365/2025

M/s Shan Flour & General Mills **Versus** Province of Punjab etc.

S.No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge and that of parties or counsel, where necessary.
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13.01.2026 Syed Riaz-ul-Hassan Gilani, Advocate for the appellant-mill.
Mr. Kanwar Sajid Ali, Assistant Advocate General.

This Intra-Court Appeal (“**ICA**”) is directed against judgment dated 22.09.2025 passed in W.P No.16207/2023, through which constitutional petition, filed by M/s Shan Flour & General Mills (“**the appellant**”) was dismissed. Challenge before the learned Judge-in-Chambers was laid to two orders of respondent No.3/Director Food, Punjab, Lahore dated 02.12.2020 and 03.08.2023.

2. By way of factual background, it has been noted that respondent No.5/District Food Controller, Layyah through order dated 18.02.2020 suspended the wheat crushing quota of the appellant till such time that the amount of recovery/penalty (Rs.1,764,081/-), imposed for low crushing, was paid (“**original order**”) that was challenged by the appellant by preferring an appeal and through order dated 02.12.2020, the original order was maintained, which was challenged by the appellant through constitutional petition bearing W.P No.263/2021, and the matter was remanded to the Director Food, Punjab and through order dated 03.08.2023, the original order was again upheld.

3. When confronted as to the maintainability of this ICA in terms of Section 3(2) of the Law Reforms Ordinance, 1972 (“**the Ordinance**”), which bars an appeal where the order passed by the learned Judge-in-Chambers in exercise of his constitutional jurisdiction arises out of proceedings in which the applicable law

provides a right of appeal, revision, or review before any court, tribunal, or authority, learned counsel submits that the appellant has challenged imposition of the recovery/penalty against which no appeal, revision or review was provided and has not further challenged the suspension of quota.

4. Heard.

5. The legal question involved is articulated as under:

Whether ICA is maintainable if part of the original order is not amenable to appeal, revision or review under the applicable law?

6. Admittedly, the appellant was allocated a wheat quota for crushing, which was not adhered to and on account of low crushing, order dated 18.02.2020 was passed by the District Food Controller, Layyah, against which appeal was preferred and was dismissed twice. The matter is governed by the Foodgrains (Licensing Control) Order, 1957 (“**Control Order**”), Article 10 whereof reads as under:

“**10.** (i) If any person holding a license under this Order contravenes any condition of the license then without prejudice to any other action which may be taken against him, his license may be suspended for a specified period or cancelled by the Licensing Authority after due notice along with the recovery of the misappropriated wheat stocks, if any.

(ii) **A person aggrieved by an order of suspension or cancellation of a license may, within thirty days of the communication of the order, prefer an appeal to the Government, in case the order is passed by the Deputy Director of Food; to the Commissioner of the Division in the case the order is passed by the Assistant Director**

Food; and, to the Director, in case the order is passed by the District Food Controller.

(iii) The decision of the Government, the Commissioner and the Director, as the case may be, shall be final.

(iv) Notwithstanding anything contained in this clause, the Director may, after due notice and for reasons to be recorded in writing, suspend for a specified period or cancel a license issued under this Order, and in such a case appeal under sub-clause (ii) shall lie to the Government.”

(Emphasis supplied)

Section 3(2) of the Ordinance reads as under:

“3. Appeal to High Court in certain cases. —
(1)....

(2) An appeal shall also lie to a Bench of two or more Judges of a High Court from an order made by a single Judge of that Court under [clause (1) of Article [199] of the Constitution of the Islamic Republic of Pakistan] not being an order made under sub-paragraph (i) of paragraph (b) of that clause:-

Provided that the appeal referred to in this sub-section shall not be available or competent if the application brought before the High Court under Article [199] arises out of any proceedings in which the law applicable, provided for at least one appeal [or one revision or one review] to any court, tribunal or authority against the original order.”

(Emphasis supplied)

7. It has not been denied that the District Food Controller, Layyah had the authority to suspend/cancel the quota under the Control Order, and there is no bar, under the law, to the imposition of a condition of recovery in order to revive the said quota. The argument of learned counsel for the appellant that the original order should be segregated for the purpose of determining, whether the ICA is maintainable, is misconceived

inasmuch as under Section 3 of the Ordinance, the maintainability of an ICA depends upon the nature of the jurisdiction exercised by the learned Judge-in-Chambers and the availability of a statutory remedy under the applicable law. Section 3(2) of the Ordinance bars an ICA where the order passed by the learned Judge-in-Chambers arises out of proceedings in which the applicable law provides a right of appeal, revision, or review before any court, tribunal, or authority.¹ Hence, jurisdiction of Division Bench of the High Court is both limited and conditional.²

8. Having above legal position in respect of scope of Section 3(2) of the Ordinance in sight, the provisions of the applicable law, in present case—the Control Order, requires an analysis. Admittedly, the Control Order provides a departmental or statutory remedy against an order of suspension. The existence of such remedy attracts the statutory bar, irrespective of whether it was actually availed. The attempt to distinguish between “penalty/recovery imposed” and “suspension till such recovery is made” does not advance the case of maintainability, where the penalty/recovery and the suspension emanate from the same original order. The said findings remain composite in nature and intertwined, therefore, an ICA cannot be selectively maintained against one part of such original order while conceding the other, as the challenge, in substance, remains directed against the original administrative decision. Acceptance of such an argument would defeat the object of the Ordinance.

¹ “*Federal Public Service Commission through its Secretary, Islamabad v. Kashif Mustafa and others*” (PLD 2025 SC 713).

² “*Muhammad Umair Farooqi v. The Federation of Pakistan and others*” (2025 LHC 7136)

9. In view of the above discussion, we are of the opinion that the ICA is not maintainable, even if the appellant confines the challenge to the part of the original order, against which the right of appeal, revision, or review is not explicitly available under the applicable law. Hence, the same is **dismissed**.

(Sultan Tanvir Ahmad)
Judge

(Anwaar Hussain)
Judge

Approved for reporting

Judge

A.B**